

Consent (87.5%), Contract (60.7%), Data Controller (67.8%), Data Subject (97.7%), Personal Data (95.6%), Processing (87.9%):

These Terms and Conditions (Agreement) are a legal agreement that explain the terms and conditions that all visitors, users, clients and customers (You, or Your) must comply with when using the Website.

Legal Basis (92.9%), Right (66.1%):

PLEASE READ THIS AGREEMENT CAREFULLY because it affects Your rights and liabilities under the law.

Consent (69.2%), Contract (60.7%), Data Controller (99.1%), Legal Basis (67.6%), Non-Personal Data (62.1%), Organisational Measure (81.2%), Personal Data (75.4%), Processing (96.0%), Retention (93.3%), Right (63.8%):

Terms of service - Caster.fm Skip to content Twitter Facebook-f Login Free Accounts Cloud Accounts Pro Accounts Login Free Accounts Cloud Accounts Pro Accounts Home Free Plan Cloud Details Register Login Pro Plan Details & Packages Panel Features Tour Widgets and Players iOS, Android & Desktop Apps Alexa Skills Pre-Sales Questions Compare Plans Radio Directory News Help Center Home Free Plan Cloud Details Register Login Pro Plan Details & Packages Panel Features Tour Widgets and Players iOS, Android & Desktop Apps Alexa Skills Pre-Sales Questions Compare Plans Radio Directory News Help Center Terms and Conditions Introduction Welcome to www.caster.fm and/or clients.caster.fm (the Website).

Contract (71.0%), Data Controller (95.6%), Legal Basis (74.4%), Non-Personal Data (74.9%), Not Required Purpose (60.2%), Personal Data (92.2%), Processing (97.4%), Right (73.6%), Technical Measure (98.7%), Third Party (62.7%):

These Terms and conditions are governed by the law of Israel Contents Click below to jump to any section Definitions User Rights and Responsibility Acceptable use Prohibited Use Our Content Trademarks/ No Endorsement User Content Right To Takedown Content Advertising Rights Your Account Subscription Based Services Subscription Based Services Subscription Fees Ongoing Subscription and Cancellation Invoicing Website Information Security Links to this Website Third Party Links DIGITAL MILLENNIUM COPYRIGHT ACT (DMCA) NOTICE Intellectual Property Rights Copyright Notice Disclaimers Limitation of Liability Indemnity Release Communication Dispute Resolution and Arbitration Termination Consequences of Termination or Expiration Revisions Force Majeure Minimum Age Requirements General User Feedback Contact Us 1 Definitions The following terminology applies to these Terms and Conditions, Privacy Statement and Disclaimer Notice and any or all agreements: Account refers to the account that You have to create in the

Website to log in, use, and access some parts of the Website.

Non-Personal Data (85.8%), Personal Data (98.9%), Processing (66.7%), Right (74.6%), Technical Measure (90.0%):

Content is the information displayed at the Website including without limitation text, data, code, images, photographs, graphics, software, designs and any other materials that are available at the Website.

Processing (72.3%):

Goods means all goods that We supply and make available to You as detailed in the Invoice.

Data Source (65.2%), Required Purpose (75.3%):

Invoice is a list of the Goods sent or the Services We provide to You, detailing individual amounts of Goods or Services plus a sum total.

Data Subject (66.9%), Personal Data (98.8%):

You are responsible for the safety and confidentiality of your passwords and usernames.

Data Controller (85.3%), Recipient (67.2%), Right (95.9%):

This Agreements incorporates Our Privacy Policy and Copyrights Policy.

Consent (87.6%), Personal Data (79.4%), Technical Measure (61.9%):

You will not use any meta tags or any other hidden text utilizing Our name or trademarks without Our express written consent.

Processing (80.2%):

The Website and/or any portion of the Website may not be reproduced, sold, resold, visited or otherwise exploited for any commercial purpose without Our express written consent.

Non-Personal Data (65.5%), Processing (98.8%), Technical Measure (82.8%):

Your use and access of the Website does not include any right of resale or commercial use of the Website or its Contents; any collection and use of any product listings, descriptions, or prices; any derivative use of the Website or its Contents; any downloading or copying of account information for the benefit of another merchant; or any use of data mining, robots, or similar data gathering and extraction tools.

Required Purpose (87.2%), Technical Measure (63.2%), Third Party (97.7%):

Distribute any material that contains software viruses or any other computer code, files, or programs that are designed or intended to: (a) disrupt, damage, or limit the functioning of the Website, any software, hardware, or telecommunications equipment used in connection therewith; or (b) damage or obtain unauthorized access to any data or other information of any third party.

Legal Basis (92.7%):

in any way that breaks or breaches applicable local, national or international laws or regulations.

Legal Basis (85.4%):

Use any portion of the Website for any unlawful purpose or otherwise fail to comply with all applicable domestic and international laws, statutes, ordinances and regulations.

Personal Data (86.7%), Processing (66.8%), Required Purpose (66.5%), Right (89.0%):

Use any portion of the Website for uploading, posting, e-mailing, transmitting or otherwise making available User Content that infringes any patent, trademark, trade secret, copyright or other proprietary rights of any party.

Personal Data (99.8%):

Violate the privacy of any third party, this includes, but is not confined to, posting personal information about another person or entity without consent.

Non-Personal Data (65.5%):

Back to table of contents 3 Our Content Except for User Content as defined in User Content clause below, all of the content featured or displayed on the Website, including, without limitation, text, graphics, photographs, images, moving images, sound, and illustrations (Our Content), are owned by Us, Our licensors, vendors, agents and/or Our content providers.

Right (87.6%):

All elements of the Website, including without limitation the general design and Our Content, are protected by trade dress, copyright, moral rights, trademark and other laws relating to intellectual property rights.

Legal Basis (89.6%), Processing (71.3%):

Except as may be otherwise indicated in specific documents within the Website or as permitted by copyright law, You are authorized to view, play, print and download copyrighted documents, audio and video found on Our Website for personal, informational, and noncommercial purposes only.

Not Required Purpose (60.6%), Processing (78.8%), Right (81.4%):

Except as permitted by copyright law, You may not modify any of the materials and You may not copy, distribute, transmit, display, perform, reproduce, publish, license, create derivative works from, transfer or sell any information or work contained on the Website.

Processing (71.5%):

2.2 Prohibited Use While using our service the following terms must be adhered to: to transmit or send unsolicited or unauthorized advertising or promotional material in any form.

Processing (70.7%):

Services refer to any work We perform for You.

Personal Data (84.9%), Third Party (88.2%):

[Back to table of contents](#) 4 Trademarks/ No Endorsement All of Our trademarks, service marks and trade names used herein (including but not limited to: the Caster.fm name, Caster.fm logo, the Website name, the Website design, and any logos) (collectively Marks) are Our trademarks or registered trademarks or of Our affiliates, partners, vendors or licensors.

Personal Data (63.1%):

You shall not use Our name or any language, pictures or symbols which could, in Our judgment, imply Our endorsement in any (i) written or oral advertising or presentation, or (ii) brochure, newsletter, book, or other written material of whatever nature, without prior written consent.

Personal Data (95.8%), Right (86.2%):

[Back to table of contents](#) 5 User Content You may be able, as dictated by the functionality of the Website, to submit or to otherwise make available messages, e-mails, photographs, videos and other content for display on the Website (User Content).

Art. 17 Right to erasure (right to be forgotten) (83.4%), Organisational Measure (84.9%), Processing (86.0%):

You will not remove any copyright, trademark or other proprietary notices from material found on the Website.

Contract (73.0%):

By using the Website, You agree to abide by all of the terms and conditions in this Agreement.

Automated Decision Making (86.7%):

By submitting or otherwise making available any User Content to the Website, You automatically grant Us a nonexclusive, royalty-free, worldwide, perpetual, irrevocable, sub-licensable (through multiple tiers), license to use, modify, copy, distribute, transmit, publicly display, publicly perform, publish, adapt, create derivative works of, distribute, transfer or sell any such content, for any purpose, including commercial purposes and in connection with advertising for the sole benefit of the Website (collectively, Use), in any type of media or in any form now known or later developed, without any payment to You.

Processing (64.3%), Right (74.2%):

Modify, translate, adapt, edit, decompile, disassemble, or reverse engineer any software programs used by Us.

Right (83.2%):

In addition, You automatically waive and give up any claim that any use of such content violates any of Your rights, including privacy rights, publicity rights, moral rights or any other right, including the

right to approve the way the Website uses such content.

Right (71.8%):

Back to table of contents 2 User Rights and Responsibility 2.1 Acceptable use Caster.fm will not be held liable should the website be unavailable for any amount of time.

Right (78.1%):

You also grant Us and the Website the right to use any material, information, ideas, concepts, know-how, or techniques contained in any communication You provide, submit, or otherwise make available to the Website or to Us for any purpose whatsoever, including, without limitation, commercial purposes.

Right (82.7%):

By submitting User Content, You further warrant and represent that the User Content infringes no third-party right of privacy, right of publicity, or any other third-party right or proprietary interest.

Not Required Purpose (68.5%):

We do not vouch for the accuracy or credibility of any User Content on Our Website, and do not take any responsibility or assume any liability for any actions You may take as a result of reading User Content on Our Website.

Processing (95.7%):

USERS STREAMS AND AUDIO CONTENT Caster.fm does not keep track of streams and/or audio contents and all content being broadcasted is the responsibility of the client.

Art. 17 Right to erasure (right to be forgotten) (73.8%):

We have the right to remove any material or posting you make on our site and/or even close your account (if advised so or by our own privilege) if in our opinion, such material does not comply with the content standards.

Organisational Measure (69.3%):

However, We shall have the right in Our sole discretion to edit, refuse to post, or remove any material submitted to or posted on the Website at any time without notice.

Contract (61.6%), Right (83.4%):

Without limiting the foregoing, We shall have the right to remove any material that We find to be in violation of the provisions hereof or otherwise objectionable, and the additional right to deny any User who fails to conform to any provision of this Agreement access to the Website.

Processing (92.2%):

However, We may retain copies of Your User Content, not accessible to the public, on Our backup servers even after You request removal.

Right (65.3%):

Back to table of contents 7 Advertising Rights We reserve the right to sell, license and/or display any advertising, attribution, links, promotional and/or distribution rights in connection with User Content.

Organisational Measure (73.7%), Required Purpose (68.7%):

You are responsible for taking precautions and providing security measures best suited for Your situation and intended use of the Services and Website.

Third Party (97.0%):

The Website may also include a tool that allows You to sign in or register using information from Your accounts in third party services, such as Facebook, Twitter, Google, Yahoo, or LinkedIn.

Processing (86.6%):

For more information on how We collect, store, use, and share Your Account Data, please check Our Privacy Policy Back to table of contents 9 Subscription Based Services 9.1 Subscription Based Services We offer certain Content and Services available via subscription (Subscription).

Processing (71.0%):

You will not share Your Account Data or Your username and password with any third party or permit any third party to login to the Website using Your Account Data.

Consent (67.8%):

By using or accessing the Website, You confirm that You have read and agreed to be bound by this Agreement.

Retention (69.7%):

Subscription fees are subject to change at the end of each Subscription period.

Organisational Measure (71.6%):

We will inform of such changes before the new Subscription fees take effect.

Retention (90.5%):

The Subscription will remain active during the Subscription period.

Retention (60.8%):

If You do not agree with this Agreement, You cannot use or access the Website.

Retention (62.2%):

9.2 Subscription Fees If You have subscribed to a paid subscription and upgraded to a higher subscription, You will be billed for the Subscription fees of the paid subscription at the start of its subscription period.

Retention (90.6%):

If You have subscribed, Your Subscription will continue in effect after Your initial subscription Period,

unless and until You cancel Your Subscription or Account, or Subscription is otherwise suspended or discontinued.

Processing (98.0%):

Back to table of contents 11 Security Information provided by you through www.caster.fm is stored on a secured private server.

Data Controller (80.2%), Retention (75.1%):

These Terms and Conditions outline the rules and regulations for the use of www.caster.fm and its related websites.

Organisational Measure (86.1%):

While we have taken reasonable precautions to protect your personal information, no security system is impenetrable and we cannot guarantee the security of information that you provide to us via the Internet, through our Website, through online ordering, or in databases stored on our servers.

Technical Measure (62.5%):

Our online ordering functionality employs Secure Sockets Layer (SSL) software, the industry standard and among the best software available today for secure commerce transactions.

Personal Data (97.6%):

It encrypts all of your personal information.

Right (77.2%):

You obtain no rights other than the right to link to Our Website.

Not Required Purpose (83.8%):

You agree to not use the links in any manner that is likely to reduce, diminish or damage the goodwill, value or reputation associated with Us.

Processing (70.9%):

If Your wish to obtain written consent from Us, please contact us using our contact page Back to table of contents 13 Third Party Links From time to time, the Website may contain links to sites that We and Our affiliates do not own, operate nor control.

Processing (72.6%):

User Content does not represent Our views or any individual associated with Us, and We do not control User Content.

Third Party (94.0%):

We do not control, endorse, sponsor or approve of the third parties or their content not do We take any responsibility for any aspect of these websites or their content.

Consent (78.9%):

If You decide to access any other site linked to or from this Website, You do so entirely at Your own risk.

Authority (62.9%), Organisational Measure (80.8%):

You agree to be aware when You leave the Website and to read the privacy statements of these sites.

Organisational Measure (84.3%):

You will evaluate the security and trustworthiness of any site connected to or accessed through the Website before disclosing any personal information to them.

Processing (68.4%):

We do not accept any responsibility for any loss or damage in whatever manner, howsoever caused, resulting from Your disclosure of personal information to those third-party sites.

Processing (88.8%):

As a result, third party materials that We do not own or control may be transmitted, stored, accessed or otherwise made available using the Website.

Organisational Measure (74.3%):

We have placed certain legally mandated procedures regarding allegations of copyright infringement occurring on the Website.

Organisational Measure (82.9%):

We will respond expeditiously to remove or disable access to the material claimed to be infringing and will follow the procedures specified in the DMCA to resolve the claim between the notifying party and the alleged infringer who provided the content.

Organisational Measure (60.1%), Personal Data (91.5%):

We may give notice to Our users of any infringement notice by means of a general notice on Our Website, electronic mail to a users e-mail address in Our records, or by written communication sent by first-class mail to a users physical address in Our records.

Personal Data (78.6%), Scale Non-EU (97.1%):

To be effective, the counter-notification must be a written communication that includes the following: Your physical or electronic signature; Identification of the material that has been removed or to which access has been disabled, and the location at which the material appeared before it was removed or access to it was disabled; A statement from You under the penalty of perjury, that You have a good faith belief that the material was removed or disabled as a result of a mistake or misidentification of the material to be removed or disabled; and Your name, physical address and

telephone number, and a statement that You consent to the jurisdiction of a Federal District Court for the judicial district in which Your physical address is located, or if Your physical address is outside of the United States, for any judicial district in which We may be found, and that You will accept service of process from the person who provided notification of allegedly infringing material or an agent of such person.

Personal Data (89.0%):

Please provide the following notice: Identify the copyrighted work or other intellectual property that You claim has been infringed; Identify the material on the Website that You claim is infringing, with enough detail so that We may locate it on the Website; A statement by You that You have a good faith belief that the disputed use is not authorized by the copyright owner, its agent, or the law; A statement by You declaring under penalty of perjury that (a) the above information in Your notice is accurate, and (b) that You are the owner of the copyright interest involved or that You are authorized to act on behalf of that owner; Your address, telephone number, and email address; and Your physical or electronic signature.

Personal Data (85.9%):

[Back to table of contents](#) 15 Intellectual Property Rights We claim copyright and all other intellectual property rights to all the material on the Website, including, but not limited to the words, information, graphics, designs, logos, trademarks, photographs, icons, drawings and text.

Data Source (71.7%):

[Back to table of contents](#) 18 Limitation of Liability We do not assume any responsibility, or will be liable, for any damages to, or any viruses that may infect Your computer, telecommunication equipment, or other property caused by or arising from Your access to, use of, or browsing the Website, or Your downloading of any information or materials from this Website.

Contract (72.9%), Personal Data (82.7%), Right (61.9%):

[Back to table of contents](#) 19 Indemnity You agree to defend, indemnify and hold Us and any of Our affiliated company or individual harmless from any and all liabilities, costs, and expenses, including reasonable attorneys fees, related to or in connection with (a) the use of the Website or the internet or Your placement or transmission of any message or information on this Website by You or Your authorized users; (b) Your violation of any term of this Agreement, including without limitation, Your breach of any of the Representations and Warranties above; (c) Your violation of any third party right, including without limitation any right of privacy, publicity rights or Intellectual Property Rights; (d) Your violation of any law, rule or regulation of Israel or any other country; (e) any claim or damages that arise as a result of any User Content that You provide to Us; or (f) any other party's

access and use of the Website with Your unique username, password or other appropriate security code.

Contract (65.9%):

Back to table of contents 21 Communication We reserve the right to send You an electronic mail for the purpose of informing You of changes or additions to the Website or this Agreement.

Legal Basis (66.6%), Processing (77.6%), Required Purpose (88.1%):

Except as disclosed in Our Privacy Policy, We will not monitor, edit, or disclose the contents of Your e-mail, unless required in the course of normal maintenance of the Website and its systems, or unless required to do so by law or in the good-faith belief that such action is necessary to: (a) comply with the law or comply with legal process served on Us or the Website; (b) protect and defend Our rights or property of, the Website, or the users of the Website; or (c) act in an emergency to protect the personal safety of Our guests, the Website, or the public.

Retention (84.9%):

In an attempt to find the quickest and most efficient resolution of Our issues, You and We agree to first discuss any issue informally for at least 35 days.

Personal Data (99.4%):

To do that, please send Your full name and contact information, Your concern and Your proposed solution by email to Us at .

Personal Data (89.8%):

If You wish to remove Your User Content from the Website, please send Us an email to .

Authority (73.6%), Retention (94.4%):

There are two limited exceptions to this Dispute Resolution and Arbitration provision: (a) either Party may pursue in small claims court any action that is within that jurisdiction, as long as the case proceeds on an individual basis only; (b) either Party may seek to enforce its patents, trademarks, copyrights or trade secrets in an appropriate state or federal court.

Organisational Measure (88.2%):

You may terminate Your use of the Website or the Services by contacting Us through our contact details in this policy.

Third Party (73.4%):

Party refer to either You, or Us, or any other party to this Agreement.

Retention (60.6%):

Back to table of contents 25 Revisions This Agreement is subject to Our revision and changes from

time to time.

Data Subject (76.1%):

A Subscriber is a User who agreed to receive notifications from Us and/or who uses the Website on a paid subscription model.

Authority (61.5%):

Back to table of contents 26 Force Majeure We shall not be responsible for damages or for delays or failures in performance resulting from acts or occurrences beyond Our reasonable control, including, without limitation: fire, lightning, explosion, power surge or failure, water, acts of God, war, revolution, civil commotion or acts of civil or military authorities or public enemies; epidemics, pandemics; any law, order, regulation, ordinance, or requirement of any government or legal body or any representative of any such government or legal body; or labor unrest, including without limitation, strikes, slowdowns, picketing, or boycotts; inability to secure raw materials, transportation facilities, fuel or energy shortages, or acts or omissions of other common carriers.

Legal Basis (67.8%), Scale EU (78.1%):

Access to and use of Our Website is only for those who are at least at the age of 13 years in the USA or 16 years in the European Union or otherwise capable of entering into and performing legal agreements.

Processing (93.7%):

We have adopted a policy that provides for the immediate removal of any content or the suspension of any user that is found to have infringed on Our rights or of a third party, or that has otherwise violated any intellectual property laws or regulations, or any of the terms and conditions of this Agreement.

Legal Basis (74.7%):

Any claim relating to, and the use of, this Website and the materials contained herein is governed by the laws of the state of Israel.

Authority (60.6%):

You consent to the exclusive jurisdiction of the state and federal courts located in , Israel.

Processing (97.9%):

We and Our licensors or affiliates will be entitled to retain any and all revenue generated from any sales or licenses of such advertising, attribution, links, or promotional or distribution rights.

Processing (96.8%):

A printed version of this Agreement will be admissible in judicial and administrative proceedings based upon or relating to this Agreement to the same extent and subject to the same conditions as

other business documents and records originally generated and maintained in printed form.

Right (73.2%):

Our failure to act with respect to Your or others breach does not waive Our right to act with respect to subsequent or similar breaches.

Processing (66.0%):

You acknowledge and agree that if You submit any Feedback to Us, You hereby grant to Us a non-exclusive, worldwide, perpetual, irrevocable, fully-paid, royalty-free, sub-licensable (through several tiers) and transferable license under any and all intellectual property rights that You own or control in relation to the Feedback to use, reproduce, view, communicate to the public by any means, print, copy (whether onto hard disk or other media), edit, translate, perform and display (publicly or otherwise), distribute, redistribute, modify, adapt, make, sell, offer to sell, transmit, license, transfer, stream, broadcast, create derivative works from, and otherwise use and exploit the Feedback for any purpose.